

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Yahya Afridi, CJ
Justice Muhammad Ali Mazhar

C.P.L.A.No.712 OF 2024

Against the Judgment dated 21.11.2023
passed by Federal Service Tribunal,
Islamabad in Appeal No.534 (R) CS/2023.

Arslan Ahmed

...Petitioner

Versus

Federation of Pakistan through Secretary, ...Respondents
Ministry of Commerce, Government of Pakistan
and another.

For the Petitioner: Mr. Babar Awan Sr. ASC
Syed Rifaqat Hussain Shah, AOR

For the Respondents: Barrister Umer Aslam Khan, Addl.
Attorney General
Syeda B.H. Shah, AOR

Date of Hearing: 27.11.2025

Judgment

Muhammad Ali Mazhar-J: This Civil Petition for leave to appeal is directed against the Judgment dated 21.11.2023 passed by the Federal Service Tribunal, Islamabad, in Appeal No.534 (R) CS/2023/2023.

2. The transient facts of the case are that the petitioner was granted ex-Pakistan leave with effect from 01.10.2018 to 30.09.2020 but on expiry of leave period, he could not join the duty for the reason that the flight operation was closed during the Covid-19 pandemic. Besides that, the wife of the petitioner had also contracted Covid-19 and was seriously ill. The petitioner was directed to report on 04.11.2020 but he reported back on

27.01.2021 when the flight operations were normalized. The petitioner participated in the inquiry proceedings and during pendency, the petitioner was given posting order as Deputy Secretary China vide letter dated 05.03.2021. After joining, the petitioner was communicated a notification dated 12.03.2021, whereby the period of his absence was conveyed to be regularized later on. Meanwhile, the wife of the petitioner, who was working at a hospital in England, fell seriously ill in June, 2021, and her eyesight had diminished, therefore, the petitioner had to leave for England in emergency on 26.06.2021 to take care of his wife and kids, hence he applied for leave but the department/Ministry while adopting the provision of Rule 14 of the Civil Servants (Efficiency & Disciplines) Rules, 2020 (**E&D Rules**), initiated ex-parte proceedings and all communications were made against the wrong postal/email address of the petitioner. Finally, a colleague of the petitioner informed him on WhatsApp regarding the ex-parte disciplinary proceedings, whereupon the petitioner approached the concerned authority and thereafter, an opportunity of online hearing was provided on 17.03.2022. Ultimately, the dismissal order from service was passed on 21.09.2022 but at the same time, the period of absence with effect from 27.06.2021 to 06.09.2022 was treated as Extra Ordinary Leave (**EOL**). The petitioner preferred a departmental appeal which was rejected, thenceforth, he also filed a service appeal before the Federal Service Tribunal (**FST**) which was dismissed vide impugned judgment.

3. The learned counsel for the petitioner argued that the learned FST passed the impugned judgment in due haste without considering that the period of absence complained of was already regularized and treated as EOL. It was further contended that the action of dismissal was initiated and culminated without any proper regular inquiry. He further contended that when the basic order of dismissal from service was unlawful, unfair and discriminatory, then all superstructures built on it would fall on the ground automatically. He further argued when the period of

absence was treated EOL with retrospective effect, then there was no justification to pass a dismissal order simultaneously, which in fact made the provision of adjustment of EOL redundant.

4. The learned counsel for the respondents argued that disciplinary proceedings were initiated against the petitioner under E&D Rules on account of un-authorized absence from duty with effect from 27.06.2021. The petitioner had left the country without any authorization/intimation to the parent Ministry. A show cause notice was also served upon on him on 19.01.2022 and he was accorded personal hearing on 17.03.2022 by the Secretary Commerce. After providing ample opportunity, the penalty of dismissal from service was imposed under Rule 4 (3) (e) read with Rule 7 (f) of E&D Rules, 2020. It was further contended that the conversion of unauthorized absence as EOL without pay is not a penalty or punishment but its grant under Rule 9 (3) of Revised Leave Rules, 1980, is an administrative action which can coexist with the major penalty/minor penalties. It was further averred that if a person absents himself from work without the permission of his employer, he is not entitled as of right for payment of salary for such period.

5. Heard the arguments. According to the show cause notice dated 19.01.2022, the Senior Joint Secretary (China), Ministry of Commerce, reported vide office note dated 06.08.2021 that the petitioner was absent from duty without seeking any prior permission or intimation since 15.07.2021, therefore, he was found guilty of misconduct; the Ministry of Commerce issued two (02) explanations on account of the petitioner's unauthorized absence from duty vide letters dated 23.08.2021 and 08.09.2021 respectively which were also sent to him through e-mail by Deputy Director but the petitioner never responded; as per the immigration record provided by the Federal Investigation Agency (FIA), the petitioner left Pakistan for United Kingdom on 22.12.2020 and then again on 27.06.2021 from Benazir Bhutto International Airport, Islamabad without seeking prior permission from the competent authority and as per the official record, the petitioner was found absent from duty since 27.06.2021.

6. In exercise of the powers conferred by Section 25 of the Civil Servant Act, 1973, the President was pleased to frame the Revised Leave Rules, 1980, that were made applicable to all civil servants. The aforesaid rules are germane to multifarious genus of leaves allowable to the civil servants in different situations and exigencies. The sticking point in the case at hand correlates with allowance of EOL, which is provided under Rule 9 of the aforesaid Rules with different limbs to cater the need on case to case basis which is reproduced as under:-

“9. Extraordinary leave (leave without pay). (1) Extraordinary leave without pay may be granted on any ground up to a maximum period of five years at a time, provided that the civil servant to whom such leave is granted has been in continuous service for a period of not less than ten years, and, in case a civil servant has not completed ten years of continuous service, extraordinary leave without pay for a maximum period of two years may be granted at the discretion of the head of his office:

Provided that the maximum period of five years shall be reduced by the period of leave on full pay or half pay, if granted in combination with the extraordinary leave.

(2) Extraordinary leave up to a maximum period prescribed under sub-rule (1) may be granted, subject to the conditions stated therein, irrespective of the fact whether a civil servant is a permanent or a temporary employee.

(3) Extraordinary leave may be granted retrospectively in lieu of absence without leave. [Emphasis supplied]

7. We have also analyzed judicial precedents cited by the learned counsel representing the parties to envisage the ratio deduced therefrom. In the case of Lahore Development Authority and others Vs Muhammad Nadeem Kachloo and another **(2006 SCMR 434)**, this Court observed that the absence of civil servant was initially converted into the leave of kind due but later on he was dismissed from service on the charge of being absent without leave. The Court held that the Authority had itself condoned the period of absence by allowing him leave without pay and finally declined to interfere in the judgment passed by the Service Tribunal and refused the leave to appeal. While in the case of Muhammad Sharif Abbasi Vs Member Water, Wapda, Lahore and others **(2013 SCMR 903)**, this Court observed that the appellant was under medical treatment in WAPDA hospital. On the one hand the Department

issued the charge sheet on the ground of his absence from 22.4.2001 onwards and on the other hand, it had also regularized his leave. The Court held that once the leave is regularized, there was nothing against the appellant on record to penalize him and/or impose penalty of any nature. In tandem, this Court in the case of Federation of Pakistan through Secretary, Ministry of Law and Justice Division, Islamabad Vs Mamoon Ahmed Malik (2020 SCMR 1154) negated the plea that once the absence period had been treated as an extraordinary leave, no further punishment could have been imposed upon the respondent. While relying on the judgment in the case of NAB vs. Muhammad Shafique (2020 SCMR 425) and Kafayat Ullah Khan v. Inspector-General of Police, Islamabad and another (Civil Appeal No.1661/2019), this Court set aside the impugned judgment of the Tribunal. We have also vetted independently the dictum laid down by this Court in the case of National Accountability Bureau through Chairman Vs Muhammad Shafique (2020 SCMR 425), wherein actually, the major penalty of compulsory retirement was imposed and unauthorized absence from duty for a continuous period of 66 days was treated as leave without pay. It was further held (supra) that Rule 9 (3) of Revised Leave Rules, 1980, empowered the authorized officer to treat the unauthorized absence of an employee as extraordinary leave without pay but such treatment was not to be automatically allowed in every case but such power was to be exercised in very genuine cases where the authorized officer found that imposing a major penalty on account of unauthorized absence of an employee would be too harsh or would not be warranted under the given circumstances. So far the case of National Bank of Pakistan and another Vs Zahoor Ahmed Mengal (2021 SCMR 144) is concerned, it was held by this Court that while imposing the penalty on the employee in the case of unauthorized absence, the absence period treated as an EOL was not a punishment, rather, it was a treatment given to the absence period, which the employer was entitled to do. In this case, the bank employee was absent from duty with effect from

31.10.2014 and was issued a notice dated 08.07.2015, wherein he was asked to report for duty within three days of the said notice. Since he failed to join, therefore, he was terminated from service and the intervening period from the date of absence till the date of termination was treated as EOL without pay and uncountable towards service, promotion, increment and pensionary benefits etc. The Court recapped that while imposing penalty on the employee in the case of unauthorized absence, the absence period treated as an EOL is not a punishment, rather, it is a treatment given to the absence period, which the employer is entitled to do.

8. The impugned judgment of the learned FST depicts that the learned counsel for the petitioner advanced the plea that since the absence period of the petitioner/appellant was treated as EOL, then the major penalty of dismissal cannot be imposed upon him. To address this plea, the learned FST observed that in the original dismissal order, the penalty of "Dismissal from Service" in terms of Rule 4 (3) (e) read with Rule 7 (f) of E&D Rules was imposed by the Secretary Commerce but in the impugned Notification dated 21.09.2022, the Deputy Secretary (HRM) treated the period of absence as EOL, who on notice appeared before the learned FST in person and explained that the competent authority only passed the order of dismissal from service, however, paragraph (3) in the aforesaid notification, namely, that "Further the period of unauthorized absence from duty of the accused officer w.e.f. 27.06.2021 to 06.09.2022 shall be treated as Extra Ordinary Leave (Leave without pay)" [Emphasis supplied] was added inadvertently, for which she showed her remorse on the accidental mistake.

9. On the contrary, the concise statement (C.M.A No. 748/2025) dated 11.02.2025, filed by the learned Additional Attorney General for Pakistan in the aforesaid Civil Petition on behalf of Federation of Pakistan through Secretary Ministry of Commerce, Government of Pakistan, Islamabad (Respondent No.1), is divergent. No plea

was taken before us that due to advertence or mistake of the Deputy Secretary (HRM), the period of absence was treated EOL while no such treatment was meted out in the original dismissal order passed by the Secretary Commerce. Rather in paragraph (4) of the concise statement, it is unreservedly admitted that the unauthorized absence from duty of the petitioner was treated as Extra Ordinary Leave (leave without pay), with the approval of the Secretary Commerce. In paragraph (7) it was further articulated in the context of EOL that if a man had absented from work without the permission of his employer, he shall not be entitled to claim salary as of right for such period. The relevant paragraph No.04 and 07 of the concise statement are reproduced as under:-

“4. In order to implement the above mentioned "Order" passed by the Secretary Commerce dated 06.09.2022 as well as to address the administrative action, the period of un-authorized absence from duty of the accused officer w.e.f 27.06.2021 to 06.09.2021 is treated as Extra Ordinary Leave (leave without pay), with the approval of the Secretary Commerce Notified vide MoC's Notification dated 21.09.2022.

7. The conversion of unauthorized absence as EOL without pay is not a penalty/punishment. It is treated as extra ordinary leave under Rule 9(3) of Revised Leave Rules, 1980. It is such an administrative action which can coexist with the major penalty/minor penalties. It is very obvious that if a man has absented himself from work without the permission of his employer, he of course is not entitled as of a right for payment of salary for such period”.

10. Along the lines of the impugned judgment, the period of absence was wrongly treated as EOL due to inadvertence of Deputy Secretary (HRM), while no such indulgence was shown in the original dismissal order but at one fell swoop, in the concise statement filed before us, it is admitted that the absence was treated as EOL with the approval of the Secretary Commerce with the rider that if a man is absented from duty, he is not entitled to the salary. Nothing was divulged that in case of dismissal from service whether anything is liable to be paid or not under the relevant law and rules to the petitioner. In our considered view, both the pleas on the face of it are mutually destructive and it is not comprehensible which statement is to be believed and which is to be disbelieved?

11. The astuteness of structuring "Revised Leave Rules, 1980" is to regiment and amalgamate species of leave entitlements for the civil servants admissible in different scenarios by means of an uninterrupted leave granting rules to ensure fair treatment; consistency at workplace; support for work-life balance and to accommodate other exigencies with clear guiding principles and administrative approvals. The substratum of this case is solicited on the niceties of Rule 9 (3) of the Revised Leave Rules, 1980, wherein EOL can be granted retrospectively in lieu of absence without leave. Undoubtedly, the entitlement of conversion of absence into EOL cannot be claimed automatically or *ipsi dixit*, but the sanction of the competent authority is indispensable. Demonstrably, this rule cannot be said to have been enacted with any injudiciousness or imprudence but it is configured to deal with certain acute cases of absence without leave where the competent authority in certain exigencies and fit cases may accord the advantage of this rule to a civil servant and may exonerate the absence without leave with retrospective effect. The exercise of powers under this rule must be backed with a clear administrative order without any ambiguity but in the case at hand, much confusion has been created due to the divergent statements of the one and the same respondent No.1. The departmental orders passed by the competent authority, either approval or no approval, should not be left halfway and must be without any approbation and reprobation.

12. No doubt, the adjustment of EOL with retrospective effect is not a punishment but a medium for the way out with the aim of avoiding or reconciling two extreme situations. So for all intents and purposes, when the competent authority aspires to show forbearance to the period of absence in case of any exigency or otherwise inclines to convert the absence into EOL, then the onerous burden lies on it to examine the dossier with proper and independent application of mind whether despite affording the adjustment of absence into EOL, the penalty of dismissal from service should be imposed or not? What would be the benefit or

rationale of such adjustment, especially in the case of dismissal from service, when nothing was to be taken home by a dismissed employee? Would the leave, adjusted or not, have no aftermath? Had it been the case of termination or compulsory retirement from service, the effect of such adjustment might have had a different effect on full and final settlement dues. The provision contained under Rule 9 (3) of the Revised Leave Rules, 1980, is unequivocal which empowers the competent authority to grant EOL but it is not mandatory that this facility or benefit is always contingent with the imposition of penalty as a condition precedent, rather it depends on the peculiar facts of each case. The petitioner was nonsuited predominantly on the ground that the original dismissal order did not contain any adjustment of absence through EOL, but it was inadvertently added by the Deputy Secretary (HRM) while it has been admitted in the concise statement filed on behalf of the respondent No.1 that EOL was approved by Secretary Commerce, therefore as a first fact finding forum, this is a fit case to be tried by the learned FST de novo.

13. In the wake of the above discussion, this Civil Petition is converted into appeal and allowed. Consequently, the impugned judgment of the learned FST is set aside and the matter is remanded to the learned FST to decide the Service Appeal afresh after providing an opportunity of hearing to the parties, preferably within a period of three months from the date of receiving the copy of this judgment.

Chief Justice

Judge

ISLAMABAD

27.11.2025

Khalid

Approved for reporting.